

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
Nyheem Atkins,: Index Number:
: Date Purchased:
: Date Filed:

Plaintiff : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Christopher Padin, Shield 29578 of PSA 1, :
Police Officer Oliver Vidal, Shield 26155 of PSA 1 and :
New York City Police Officers John Doe, :: Plaintiff's residence is:
: 936 Rev. James Polite Avenue
: Bronx, NY 10459

Defendants

-----X

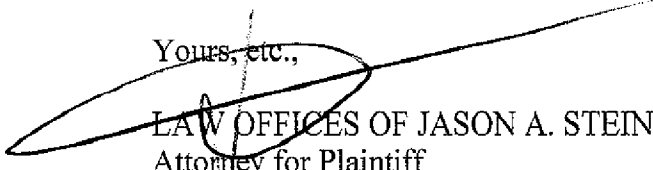
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Kings County.

Dated: August 5, 2020
Bronx, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Christopher Padin, Shield 29578 of PSA 1

Police Officer Oliver Vidal, Shield 26155 of PSA 1

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X	
Nyheem Atkins,	:
	:
Plaintiff,	:
	:
-against-	: VERIFIED COMPLAINT
	:
City of New York, New York City Police Department,	:
Police Officer Christopher Padin, Shield 29578 of PSA 1,	:
Police Officer Oliver Vidal, Shield 26155 of PSA 1 and	:
New York City Police Officers John Doe,	:
	:
Defendants.	:
-----X	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Nyheem Atkins, (hereinafter referred to as "ATKINS") resides in Kings County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Christopher Padin, Shield 29578 of PSA 1, (hereinafter referred to as "PADIN") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Oliver Vidal, Shield 26155 of PSA 1, (hereinafter referred to as "VIDAL") was employed by the New York City Police Department.

4. New York City Police Officers John Doe, those officers involved in the arrest of ATKINS, (hereinafter referred to as "DOES") was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or about May 24, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about October 17, 2019 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about June 2, 2018 at 11:00PM in the vicinity of Surf Avenue and West 19th Street, Brooklyn NY, Plaintiff was on his way home when he was stopped, handcuffed and arrested by PADIN, VIDAL and DOES.
10. That at no time had Plaintiff been engaged in any illegal or unlawful activity.
11. That at no time did Plaintiff resist a lawful arrest.
12. That at no time did Plaintiff possess any controlled substances.

13. That after Plaintiff was arrested he was transported to the PSA 1 precinct.
14. That when Plaintiff was removed to the PSA 1 Precinct he was subjected to a strip search and that nothing of an illegal nature was recovered.
15. That while at the PSA 1 Precinct, he was placed into a cell with other males for several hours.
16. That after several hours of being held in a cell at the PSA 1 precinct, Plaintiff was removed to Kings County Central Booking located at 120 Schermerhorn Street, Brooklyn, NY.
17. That while at Kings County Central Booking, Plaintiff was held in a cell with other males for several hours.
18. That on or about June 4, 2018, Plaintiff was arraigned on docket CR-026310-KN where he was charged with Resisting Arrest, Criminal Possession of a Controlled Substance in the Third Degree and Criminal Possession of a Controlled Substance in the Seventh Degree.
19. At the time of Plaintiff's arraignment, he was released on his own recognizance and ordered to return to court.
20. On and between June 4, 2018 and May 16, 2019, Plaintiff made several court appearances until the case was dismissed by the Office of the Kings County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

21. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 22, as if more fully stated herein at length.
22. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

23. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

24. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

25. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

26. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of work.

27. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of school.

28. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

31. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and

deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

37. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, PADIN, VIDAL and DOES persisted in their false claim that Plaintiff resisted a lawful arrest. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, PADIN, VIDAL and DOES persisted in their false claim that Plaintiff possessed a controlled substance. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That from June 3, 2018 through May 16, 2019 PADIN, VIDAL and DOES maliciously prosecuted Plaintiff knowing that he had not committed any crime. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That had Plaintiff possessed a controlled substance on his person PADIN, VIDAL and DOES would have recovered it at the scene of the arrest and not sometime after. PADIN, VIDAL and DOES maliciously prosecuted Plaintiff by conjuring a claim that they, after the arrest, discovered drugs on his person. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, PADIN, VIDAL and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PADIN, VIDAL and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to PADIN, VIDAL and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

46. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they possessed controlled substances when in fact they did not.

47. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people possessed controlled substances when they did in fact not.

48. The City of New York and New York Police Department were aware that PADIN had been the subject of a lawsuit, *Stokes v. City of New York* under index number 16CV00413 and they continued to employ PADIN.

49. The City of New York and New York Police Department were aware that PADIN had been the subject of a lawsuit, Brown v. City of New York under index number 16CV00401 and they continued to employ PADIN.

50. The City of New York and New York Police Department were aware that PADIN had been the subject of a lawsuit, Samuel v. City of New York under index number 16CV04108 and they continued to employ PADIN.

51. The City of New York and New York Police Department were aware that PADIN had been the subject of a lawsuit, Dossie v. City of New York under index number 14CV02303 and they continued to employ PADIN.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

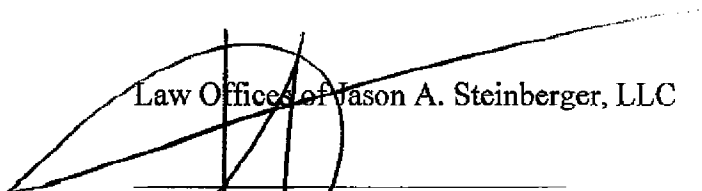
On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

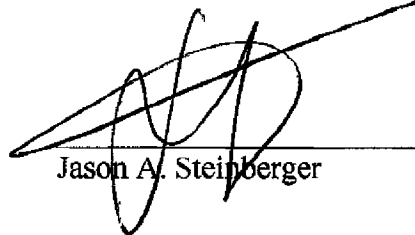

Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
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STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: August 5, 2020



Jason A. Steinberger